

TITLE:

Reasons for non-compliances in urban areas, and suggestions to improve compliance monitoring/tracking and bring needed corrections.

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I. Background & Preface

A major portion of Indian towns/cities lives in apartments. Apartments have undivided land/built-up areas belonging to all and divided built-up areas belonging to apartment owners. Due to collective ownership of land and due to the need to represent themselves and maintain common areas and deliver common services, apartments form cooperatives called Resident Welfare Associations (RWA's) represented by owner members. RWA's are represented and managed by elected members called "Managing Committees" (MC's). MC's use funds from equal contributions by owners/tenants residing in the apartments and maintain the common areas and deliver common services. The rules & regulations for use of land apply to apartments also like any other urban dwelling. However, it is often observed that due to shared roles & responsibilities apartments are mostly not well managed and due to this compliance to rules & regulations of land is also not optimal. It is suspected that non-compliance by apartments is predominant and given that most of towns/cities dwell in apartments, the overall non-compliance in towns/cities may be high.

We have lived in apartments for a long time, as tenant members, owner members and MC members. In our personal experience we feel most apartments are not serious about compliances and there are usually many violations. Urban departments are either unaware or are not equipped to handle the situation. We are trying here to consolidate the reasons for this from our experiences and then provide a solution which we think may help address the problem. Though the reasons are based on experiences in apartments, the solution proposed is generic for all urban communities. Section II focuses on the reasons. Section III and Section IV proposes a solution. The focus is more on compliances related to environment and safety while it is understood that there are other compliances related to community affairs, financials, taxation etc. which come under a different realm of departments (cooperatives, Income tax, GST etc) which we are not addressing here.

II. Reasons

The reason we think the rules and regulations are not effectively and timely enforced are the below.

A. Awareness

Awareness boils down to knowing the rules, the priority with which to apply the rules, and the accountability about who will do it or is responsible to do it.

Knowledge:

RWA's are mostly unaware or less aware of the rules and regulations applicable, both the RWA members, and particularly the MC members. This is because:

- a) The rules and regulations pertain to several departments and hence difficult to relate and comprehend for an ordinary RWA or MC person.
- b) The rules & regulations are in some cases very technical and need expert interpretation and common MC members cannot do this.
- c) The rules and regulations are amended frequently requiring the MC members to always keep themselves adept with the updates which cannot happen because MC members are focused on their personal and professional lives and can spend less time on RWA affairs.

- d) MC keep changing and their terms are usually short (mostly 1 year). In such a short term even if a MC develops good knowledge of the subject, the same is not put to good use as a new MC takes up office within one year. The handover of knowledge is usually poor unless the MC taking over is equally competent and sincere in its efforts.

Priority:

There are varied notions of priority that prevail due to the below.

- e) MC members are from various backgrounds and show different levels of conviction and priority to the topic of compliance to rules & regulations. While one MC may be very passionate about the topic, another may be least concerned, making the topic handled with different priorities in different terms.
- f) The rules & regulations don't address the day to day needs of members. They are mostly related to ensuring acceptable practises, environment and safety which are of least value & importance to RWA members unless they get personally impacted. The RWA member is completely satisfied with basic amenities (water, electricity, housekeeping) to their flat at least cost, nothing else matters.

The varied notions of priority usually lead to debate and bad decision making (MC vs MC with supporters and opposers).

Accountability:

Due to semi-formal and less professional handing of matters in RWA's, there is no clear accountability for decisions that are taken. RWA situation can be termed as "Collective Irresponsibility due to Limited Accountability".

- g) The participation in the meetings of the RWA's is usually extremely low as other members of the RWA (non-MC members) are not interested and hence put all faith in the meeting decisions, whether right or wrong, keeping themselves unaccountable in RWA decisions.
- h) Because MC serve short term (1 year), compliance topics are dealt with short term focus (accountability) and so short cuts (like differing the matter to next term, indulging in corruption with department etc) are taken to defer matters and complete the current term. A long-term focus (accountability) is never there and it is expected that the next MC will take over the burden and resolve the matter.

B. Investments

Compliance to rules & regulations comes with a cost, either money or effort to be spent. E.g. Building infrastructure, licensing fees, Maintenance costs, monthly/annual filings etc. This cost is one of the biggest reasons RWA's indulge in violations.

- a) Investments for compliances are approved based on "Return on Investment (ROI)". For RWA's, ROI has a very narrow interpretation of "reduction in costs". Other factors are not considered.
 - i. Fair practises, Environment & Safety are non-factors
 - ii. Impact to neighbour environment & safety is a non-factor
 - iii. Impact on authority/department (goals of department, reputation of department) is a non-factor.

- b) These investments are hence deferred until they become unavoidable when the authorities notice the violations and issue notices with penalties.

C. Penalties

Penalties are not designed in a way considering the psychology of the RWA's.

- a) Penalties in some cases are very high given the extent of violation by the RWA. RWA's avoid approaching the departments unless it become unavoidable due to a department notice.
- b) Penalties in some cases are very low making RWA's do a cost (vs) penalty analysis. If the cost to continue paying penalties is less than the cost to do corrections to remove the penalty, then the RWA's decide to continue to be in violation and keep paying the penalties. The impact of the violations on environment or safety of self or neighbours is a matter of no concern.
- c) Penalties do not recognize partial compliance. Full penalty may be applicable even in case of partial compliance. There is no published "calculator" from the department to quantify the extent of non-compliance/penalty and hence let RWA's feel confident to self-declare a partial compliance and plan and implement the pending works in phases.
- d) Provision to waive off a period in which RWA self declares and promises to implement an approved plan in a time bound manner is not there.
- e) Provision for waiver of penalties in case of genuine technical constraints is normally not there (or) is not well publicised for RWA's to come forward and make a self-declaration and seek waiver.
- f) Provision for reward as an opposite for penalty is not there. E.g. savings/certificates/star ratings etc., something which the RWA's can consider as ROI for their investments to be compliant.

D. Communication

It is suspected that in most departments RWA records are still not digitized. There might be lakhs of files lying in office and it is difficult for the office to find a record to scrutinize and act upon. The communication between departments and RWA's is hence not efficient due to its untimeliness. Further, the communication language (website, notices, meetings) is mostly local, adding to the inefficiency for MC members unfamiliar with the local language. Non-digitization associated inefficiencies, insistence on old physical methods, and local language use results in the following.

- a) Departments cannot send general awareness type of communications to the RWA's as automated system generated messages to educate and make RWA's aware and proactive in compliance matters.
- b) Departments cannot get a snapshot view of one or more RWA's in an area, town, city, or state at the click of a button to understand the amount of non-compliance that is existing and act appropriately.

- c) Departments cannot send notices as automated system generated messages. Even in the most regulated and concerning areas like lift licenses, STP licenses, DG licenses, Fire licenses etc. wherein it is potentially harmful to operate without a license, it is observed that there is no follow up from the departments for years after the licenses have expired.
- d) Departments cannot follow up effectively on notices due to lack of an automated system assisted workflow. Notices lie in some file only to be discovered at a later point of time if a need to rescrutinise arises.
- e) Departments due to their insistence on physical methods cannot resolve any matter without physical visits and signed notices/responses etc. This is when expediting modern methods like emails, digital documents, online meetings, etc. are available.
- f) Departments due to their insistence on local language ONLY in their correspondence and notices, do not give a firsthand and thorough understanding for readers not familiar with the language.
- g) RWA's consider insistence on traditional physical methods and local language use in correspondence as an overhead and avoidable harassment.

E. Victimization

RWA's often portray themselves as victimized.

- a) RWA's due to their size are expected to be more responsible due to their generally large size and bulk impact. Due to their larger size it also become viable for RWA's to implement plants/processes which cannot be implemented by individual houses. Hence more stringent rules & regulations are applied to RWA's. This contrasts with smaller units which are usually exempted. Instead of acknowledging this fact and taking this up as a challenge to lead and show the path, RWA's consider themselves as victimized, and challenge the rules & regulations.
- b) RWA's interests are supported by Association of Associations (AOA) which are formed in a town or city, e.g. BAF (Bengaluru Apartments Federation). While these AOA's are formed with good intent mostly to educate and guide the RWA members, the position that AOA's take are mostly biased towards the RWA's cause than the departmental cause (department goals). Hence, the objections/litigation that these AOA's file against department rules & regulations though may have merits, are often misused by rogue RWA's to conveniently hide behind the AOA's position in the matter. Little do the AOA's check the status of compliance of their members to understand the extent of non-compliance the rogue RWA's indulge in. AOA's are powerful due to their membership and influence, and departments hesitate to act firmly on RWA's due to fear of litigation given the support RWA's receive from AOA's. Due to constant litigation, department objectives and goals take a hit.

F. Corruption

It is suspected that RWA's also many times indulge in corruption with officers of departments. The practise is more prevalent when non-compliances and hence the penalties involved are high.

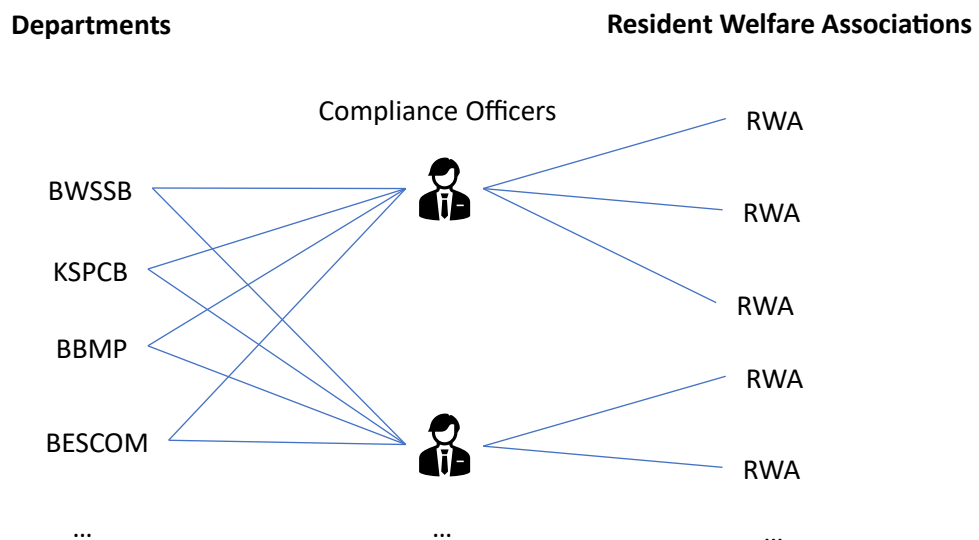
- a) The most elite RWA's with members holding high positions like presidents/directors in their professional life, openly discuss corruption in the general body meetings and secretly approve the same for action. This is because they consider the departments as vulnerable and open to corruption. Their approach is to use any means available to reduce costs and leave more money in the pocket of RWA members. Corruption is one such popular approach.
- b) Given this popular approach in RWA's, it is suspected that corrupt officers influenced by money, muscle or political power shown by corrupt MC's of the RWA's defer an inspection (or) provide a false report to the department to save the RWA's from immediate actions & penalties.
- c) Given this popular approach in RWA's, it is suspected that non-compliance matters are wilfully allowed to flourish by corrupt department officers as they only help to aggravate the situation for RWA's in future and hence will bring bigger opportunities for indulging in corruption in bigger corruption in future.

III. Proposed Framework Components

Given the above observations made for RWA's, the following is proposed as a framework to achieve compliance goals in RWA's as a joint effort. Though the proposal starts with introduction of compliance officers for RWA's, the proposal in further sections eventually proposes urban coverage and a solution suitable for all sections of urban society (Not just RWA).

A. Compliance Officers

The proposal is to have "Compliance Officers" for enforcement of compliances across urban area.



Compliance Officers will be experts in compliance matters. The officers will not be government officials, but they will be specially trained professionals and will hold a license issued by the UDD departments to perform their duties. RWA's will appoint a compliance officer to take care of their compliance requirements. The engagement with a compliance officer will be mandated to be a long-term agreement like with a CA or an auditor (say 5 years) and the compliance officers fees will be borne by the RWA. The

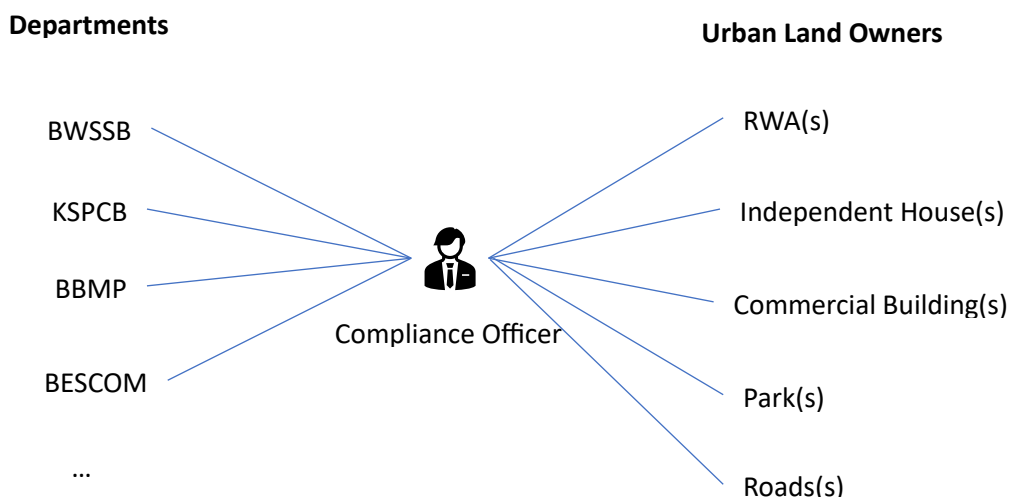
compliance officer shall be given proper stature/recognition as an independent professional by the UDD for them to receive the needed respect from the RWA. The compliance officer will perform the following duties as a trusted agent/partner of the departments.

- Participate in department policy/rule making process.
- Pass on knowledge about policy/rules and their updates as regular notices to the RWA.
- Review the compliance status of the RWA periodically and notify the RWA in case any rectifications needed.
- Follow-up to ensure the recommended rectifications are taken up for planning & implemented by the RWA at the earliest.
- Do site visits and file monthly/annual returns on behalf of the RWA as mandated by the departments.
- Prepare a consolidated annual report for the RWA and submit the same to the UDD department at the end of the year.
- Be the interface to the departments for any queries/concerns related to the RWA. Have the powers to complain to the department in case of non-cooperation/disobedience shown by RWA.

The compliance officers shall be empowered to act without bias independently but shall be answerable if found to be not performing duties honestly, and the UDD department shall be empowered to suspend/revoke the license of a compliance officer if proven guilty based on complaints from urban community or the departments.

B. Urban Coverage

The compliance officer framework can be scaled in future to different landowner groups (Independent Houses, Vacant plots, Commercial buildings, Parks etc.) for which department rules & regulations become applicable, and it is observed that non-compliances are dominant.



The ideal scenario would be to bring every urban land type and land (no matter owned by private or public) under the coverage of the compliance officers so that departments can increase their compliance coverage in urban areas with the help of services provided by the compliance officers. Even, Govt. owned land like roads, parks, lakes etc. should ideally be consolidated (e.g. under ward areas) and brought under the compliance

framework since department requirements related to environment and safety are also applicable to such public places. Similarly, private vacant land in urban should be brought under the compliance framework to ensure that the land is maintained as per the department requirements to avoid nuisance to neighbours (trespassing, pests, reptiles, drainage, rainwater handling etc).

The initiative to bring all urban areas (whether private or public owned) under the compliance framework would be fair. Departments will achieve their goals faster as there would be more participants and hence more peer pressure & competition to make the lands complaint. There would be no victimization claim any further from any of the landowner types. E.g. RWA's complaint about exemptions available for independent houses.

C. Shared Goals

Every time policies and rules are framed based on goals/objectives of the departments/ministries, there is widespread opposition from the urban population impacted. Urban communities only consider short term and selfish aspects when adjudging impact, whereas the larger neighbour and department impacts are ignored. Policies and rules thus remain on paper. Compliance becomes a matter of choice and convenience. Following can be implemented.

1. Realign goals

The departments must review and reset the objectives/goals given that some of the goals may have been set long time back. E.g. Rain Water Harvesting in 2010. The departments must consider the current knowledge and status of compliances observed in field and feedback from the urban communities in redefining the goals/objectives. The departments should also align their goals to the goals of the ministries like the urban affairs, environmental and safety ministries at national level.

2. Commit timelines.

There needs to be an inter departmental/ministerial handshake and commitment on the new goals so that these goals/objectives become the common goals of all the departments/ministries. All departments need to together commit to work towards these goals till the end of term. If required, stagger the timelines between departments so that each department has focussed goals to achieve every year.

3. Understand failure.

The impact of departments not able to meet the goals as per committed timelines must be well understood in terms of impact on town/ city/ district/ state/ nation/ world level commitments. The impact in terms of compensation, loss of face that departments must face should be translatable and quantizable as "notional and effective losses" which need to be recovered through penalties imposed on responsible urban communities.

4. Publish

The adopted goals along with the timelines and failure impact must be published as common department goals for a town/city on newspapers, websites etc. to bring

the urban public in tune with the overall goals of the town/city. The awareness and onboarding of urban communities onto the adopted goals of the town/city is important to ensure that the urban communities become a participant in the departmental goals/objectives, and vested pockets within the urban communities are naturally defeated by popular community opinion.

D. Harmonized Policies & Rules

Policies and rules of departments must be in tune with the shared goals & objectives. Also, they must be acceptable to all stakeholders once they are rolled out. Following can be implemented to ensure the policies and rules are reviewed and corrected to make them in line with the shared goals & objectives.

1. Participation

The necessary stakeholders must be part of the policy and rule making process to ensure that all sections of urban population are represented before rules are finalized.

- Department policy makers
- Compliance officers
- AOA's (Association of associations)
- ...

Once policies and rules are in place, vetted by stakeholders and published, it should only be a matter of enforcement and there should be no regression in roll out due to later opposition, protests etc. because every section was already represented when rules were framed.

Departments should seek immunity from the courts for any possible future litigation for a well thought and laid out policy/rule for town/city as per adopted goals for town/city.

2. Applicability matrix

The policies and rules should be well laid out and marked to establish their applicability to various land use types. E.g. an applicability matrix like below must be created by the departments to ensure every land ownership category in urban understand the urban rules/acts applicable to them.

Department	Rules/Acts	Land Use Categories			Decision
		<u>RWA</u>	<u>Independent House</u>	<u>Commercial Building</u>	
KSPCB	Rule/Act #1	<Yes/No>			Jointly by UDD/Department
	Rules/Act #2	<Yes/No>			
BWSSB	Rule/Act #1	<Yes/No>			
	Rules/Act #2	<Yes/No>			
		<Yes/No>			
...	...	...	...	...	...

This applicability matrix shall be an important input for compliance officers to guide the urban landowners to the applicable policy/rules requiring their attention.

The UDD department should publish the latest version of all acts/rules/regulations of the departments along with the applicability matrix like above on their websites for easy and single point reference by compliance officers and urban landowners.

3. Licensing as a starting point

Every landowner who has applicable rule(s)/act(s) from a department should apply for a license to the department. As part of the license application process, the landowner shall declare the method/plan that will be used to implement a required process/plant/machinery as per rules. The department in return would issue the license detailing the conditions under which the permit is issued and will be valid. An important condition for continued license validity should be regular filing of monthly and annual returns.

Though licensing process is prevalent, it is currently practised for only some specific operations which are regulatory in nature (e.g pollution control related). The specific proposal here is to make licensing mandatory from each department even for the simplest of rules and acts applicable E.g. Solid Waste Management. The licensing process will be considered as a wakeup call and a fresh agreement with the departments after the departments understanding the plant/machinery/process that will be involved to implement the rules & regulations. The licensing process will also make the landowner aware about the permit obtained and the conditions to keep it valid. The department will gain a fresh authoritative position due to the new licensing process because of (i) the ability to suspend/revoke the license in case the landowner fails to meet the conditions of the license (ii) the ability to publish a license status (active/suspended/expired) for a landowner in any “dashboard” that may be created.

4. Well defined Fines for violations

It is important that the fines are fair and serve their purpose as a deterrent to discourage the landowner from indulging in violations. Furthermore, the fines must recover the cost of impact that the violation may have resulted in. A template for fines is proposed below.

a) *Spot fine*

This fine is for every instance when violations were found (one spot fine for a set of violations found during an inspection). It does not consider the gravity of impact due to the violation (or) the period of violation. To fix a value for spot fine is tricky given the different nature, economic and social status of the landowners involved. What is considered a fine for one category of landowners may not be sufficient fine for another category of landowners (E.g. RWA which have many owners (vs) independent house landowners).

The formula proposed is:-

Spot Fine = SFPP * (N_{share} + N_{other}), where

SFPP : Spot fine per person. This must be fixed as an amount which in general pinches a person when spot fined. E.g Rs. 100/- in a small

town may pinch against Rs 500/- in a city. This must be fixed per town/city type and its economic status.

N_{share} : Number of shareholders for land.
E.g. number of flats in case of RWA

N_{other} : Number of other members like employees/staff engaged with the land in use.
E.g. the electricians, plumbers, manager staff on duty in case of RWA.

The principle here is that the spot fine should be calculated based on total number of persons engaged with the land. However, the spot fine must be borne only by the shareholders of the land. The idea is that the shareholders have not only disgraced themselves, but also others engaged and working in the land.

b) Impact fine

This fine is to act as deterrent for delaying fixing the impacts due to the violations. The impact caused here could be on own, surroundings or the department (by bringing the department a bad name). The impact could have its own severity level. More research must be done on this by the respective departments to arrive at an appropriate and practical formula. So, the below must be considered only as a template for further study and fine tuning by policy makers.

The formula proposed is:-

Impact Fine per day = IFPD = IFPPD * (N_{share} + N_{other}), where

IFPPD : Impact fine per person per day. This must be fixed as an amount which in general pinches a person when spot fined per day. E.g Rs. 10/- in a small town may pinch against Rs 20/- in a city. This must be fixed per town/city type and its economic status.

N_{share} : Number of shareholders of land.
E.g. number of flats in case of RWA

N_{other} : Number of other members like employees/staff/tenants engaged with the use of land.
E.g. the electricians, plumbers, manager staff on duty in case of RWA.

Impact Fine per violation = IF_v = IFPD * (OIF_v + SIF_v + DIF_v) * PNC_v * N_v

OIF_v : Own Impact Factor for the violation "v" (value in 1..5)

SIF_v : Surrounding Impact Factor for the violation "v" (value in 1..5)

DIF_v : Department Impact Factor for the violation "v" (value in 1..5)

PNC : Percentage Non-compliance as noted or computed by the department (%)

N_v : Number of days of violation observed, calculated, assumed for the violation "v"

The departments must publish a table of violations and associated impact factors and PNC measurement rule as per below on their websites.

Violation (v)	Own Impact Factor (OIF_v)	Surrounding Impact factor (SIF_v)	Department Impact Factor (DIF_v)	PNC _v measurement rule
Violation type 1	1	2	3	...
Violation type 2	1	5	3	...
...	...	...	...	..

PNC shall be a measurable quantity and shall vary from case to case. Typically, the PNC shall be derived based out of parameters captured in monthly or annual filings. For e.g. if Rainwater harvesting requirement is X litres of Rain Water Structures to build, but only 70% of X is implemented, then PNC is 30%.

Total Impact fine = IF_T = Sum of all fines calculated for each violation found for an impact duration.

Departments should note that the impact fine collected as per above may still qualify only as a formality and deterrent. This is because some impacts are irreversible and hence unmeasurable and so cannot be compensated as penalties. E.g. loss of life, contamination of ground water and soil etc. In such grievous cases, departments should have provision to initiate legal action against the urban community.

c) *Impact duration*

The impact duration variable N_v in the impact fine above must be based on observed proofs of violation period (or) an assumed period from the time the last monthly or annual return was filed to the department, whichever higher.

$N_v = \text{MAX (Observed violation period based on proofs, Time from last filed monthly or annual return)}$

This is to ensure that the urban communities duly file their monthly and annual returns and assert their right to hold the licenses. This is also to ensure that the departments work proactively to bring urban communities to order at the earliest. Any long periods for impact duration shall not only be the responsibility of urban community, but also the departments which allowed such a long duration violation to happen.

5. Fines Calculator

It will help to bring transparency if the “spot + impact fine(s)” can be computed at any time like an online calculator at the department website. It will help departments to establish their transparent policy, and it will help urban

communities to ascertain the penalties as authoritative and plan for clearing the same and take necessary steps urgently to get the license reissued.

6. Provision for Waiver

It is expected that in cases wherein violations are widespread and for a very long period, the fines may become impractical and beyond the capacity of any urban community to pay. The urban communities in such cases may use immoral and sometimes even unethical practices to show themselves as victimized by the department and initiate a litigation. An open window to apply for waiver in such cases must be made available for the urban community to make an appeal and request for a waiver. It should be left to the department's discretion after approvals from higher departments to provide such waivers in genuine cases.

Such a provision will prevent the urban communities from dragging the departments into false litigations.

7. License History

The license history should be available for view to both the relevant department and the urban community. Further, the department shall have relevant rights to modify limited fields in the license history based on decisions taken.

License history shall consist of

- Licence general information (license no., Issue date, Expiry date etc.)
- License status (E.g. applied/active/suspended/expired etc.)
- Transaction History – A list of notices issued with responses (department comments, supporting documents etc.) and notices status (pending, resolved)

This information will bring transparency in department-community relationship. It will be useful for both department and urban community to be well informed about the past and accordingly act with knowledge in future. The old practise of transacting with physical notices must be done away with, and all transactions must be recorded digitally in the system as part of transaction history.

E. Star Ratings

The system should be able auto compute Indicators to show the level of compliance at different levels.

- Individual
- Town/City
- District
- State
- etc.

Every urban entity shall be “star rated” for the previous year, based on star ratings for compliances at individual department levels. The ratings shall be auto computed based on PNC rules defined by the departments for department level, and then auto computed based on rules defined by the UDD/Urban ministry for the overall level. Whether to publish the star ratings publicly or make the same viewable to

authorized department/agencies only may be a matter of policy. The computation of star ratings will urge the urban entities to take steps to improve the ratings by taking appropriate actions.

The star ratings may be used for different purposes and the use cases for the same shall be outside the scope of the proposed framework in this paper.

E.g. Star ratings can be used by agencies to value property.

E.g. Star ratings can be used by agencies to reward/penalize in local taxation. E.g. property tax for an urban community member can mandate quoting of an allotted urban community number by the UDD and based on the star rating for the urban community number, a surcharge or discount may be applied for the property tax to be paid.

E.g. Star ratings at town/city level or district or state level will help the higher agencies to judge the effectiveness of the policies at different levels

F. Whistle blowing.

The system should adopt a policy of openness to whistle blowers like internal community activists, external environmentalists etc. who complain about an observed or suspected violation. In general activists are intimidated, isolated, and insulted by urban community as such activism results in notices and penalties to the parties involved. Departments should embrace such activists and activism as they can become the catalysts for change for departments to achieve their goals. The system must open whistle blower complaint e-boxes to receive complaints related to suspected violations and if possible, reward such activism through monetary or non-monetary rewards like acknowledgement, citations, certificates, awards etc as found appropriate. At the same time, the system should provide appropriate protection to such activists by not revealing their identities in public and exposing them to potential harm by the involved parties.

IV. Proposed Framework Enforcement

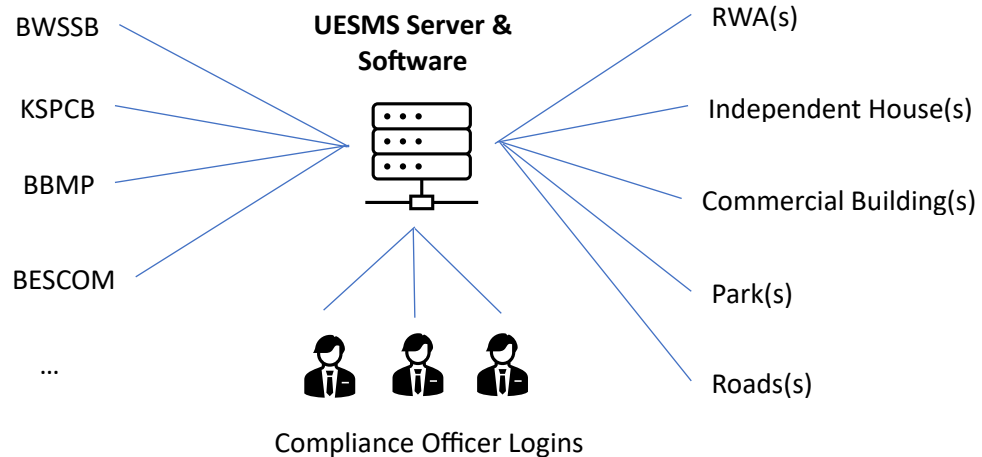
The departments, compliance officers, and the urban community need to be brought under a single system and workflow to operate with framework components as proposed in this paper. Following is proposed.

A. UESMS - The Infrastructure

The urban departments can continue to use their current departmental systems and processes (digital or manual) for carrying out their duties. What has been proposed in the previous section can be implemented as a complementary system to enhance the urban department-community interface under one urban monitoring and tracking system maintained by UDD (or any other department that can play an overseeing role at the state level). It will be costlier to implement such a complementary system for each department. Hence the proposal here is to implement the complementary system as a unified framework to cover all urban departments and call it as the “Unified Urban Environment and Safety Monitoring/Tracking System (UESMS). Following is the infrastructure needed to implement the UESMS.

Urban Department Logins

Urban Landowners Logins



The UESMS software will be instantiated on the servers of the UDD department of each state. The software will provide logins to Urban departments, Urban landowner communities and Compliance officers of the state. Records will be created for each urban community as per further sections below, and specific record fields will be maintained by the allowed participants in a workflow to make the records live and meaningful as a compliance tracking system. The system will autogenerate metrics like star ratings, dashboards etc. for departments, town/city, and state to serve also as a compliance monitoring system for the departments and compliance officers.

B. UESD – The Department Records

The UESMS software will be instantiated across states and each state will have its own unique departments possibly not matching with other states. Hence the department for a state must be created in the UESMS system through a registration process and allotment of a department Registration Number. The department registration number will be called as “Urban Environment and Safety Department (UESD)” number.

As part of initial configuration of the UESMS system of a state, the state departments will have to register themselves into the system with relevant registration information. A sample template for registration could be as below. The UDD department of the state will be the 1st department registered in the system.

Section	Fields	Comments	Updatable By
Department Info	UESD	System Generated Number	-
	Dept. Name		UDD
	Dept. Abbreviation		
	Dept Office Address		
	...		
Department Responsible Officers[N]	Dept Officer Name		Dept. Super Admin (1 st department user created will be the Dept. Super Admin and can be created by UDD only. Subsequently this list will be self-managed)
	Dept Officer Id		
	Dept Officer Email Id		
	Dept Officer Contact Phone		
	Dept Officer Login Id		
	Dept Officer Role	Read/Write/Dept. SuperAdmin	
	Dept Officer Status	Active/Suspended/Resigned	
	...		

			by the dept. Super admin)
Rules & Acts [N]	Rule/Act Name		Dept. Super Admin
	Rule/Act Version		
	Rule/Act Reference Link on Dept Website	Active link for download in dept. website	
	Current Rule/Act Status	Active/Removed/Superseded	
	Superseded Info	Info about the acts which supersede this one	
...	...	...	...

Note: This is only an illustration, and the actual design will be a matter of further detailing of requirements, workflow, and software considerations.

Note: [N] stands for N number of records of given type

C. UESO – The Compliance Officer Records

The UESMS software will be instantiated across states and each state will have its own UDD certified compliance officers. Hence the compliance officers must be created in the UESMS system through a registration process and allotment of an Officer Registration Number. The Officer registration number will be called as “Urban Environment and Safety Officer (UESO)” number.

As part of initial configuration of the UESMS system of a state, the UDD will have to add urban compliance officers for the state in the UESMS system. A sample template for registration could be as per below.

Section	Fields	Comments	Updatable By
Certified Compliance Officers [N]	UESO		System Generated
	Comp. Officer Name		UDD
	Comp. Officer Qualifications		
	Comp. Officer Email Id		
	Comp. Officer Contact Phone		
	Comp. Officer Login Id		
	Comp. Officer Status	Active/Suspended/Blacklisted	
	...		

Note: This is only an illustration, and the actual design will be a matter of further detailing of requirements, workflow, and software considerations.

Note: [N] stands for N number of records of given type

D. UESC – The Community Records

The UESMS software will allow urban communities to be created as community records with a registration number in the UESMS system. The registration number will be called as “Urban Environment and Safety Community (UESC)” number.

- i. Every land owner in urban limits will register to the UDD of the state for a UESC

- ii. Each UESC allocated will be against a land use category and relevant further details as per land use will be captured in the UESC record. Only relevant rules & regulations of urban departments will be applicable for a UESC as per land use category.
- iii. Public land owners/custodians like BBMP may also need to register for a UESC. This is a future proposition after covering all private landowners. The idea is that land owned or under custody of Govt. departments are also subject to rule of land defined by departments, hence the urban compliances shall also cover such owned public lands. Given the size of land owned/in-custody of public entities like BBMP, such public entities may choose to create multiple UESC's say ward-wise for better management.

The UESC record templates will be configurable created by the Urban departments in a contributory manner. This means that the UESC templates will have sections which will be defined by separate departments in a contributory manner. The UDD department will only define a small section capturing the profile/characteristics of the urban community. E.g if it is an RWA, then the land area, number of flats, amenities present, etc will be captured by the UDD as the profile section for the urban community. The rest of the sections will be configured by the respective departments associated to the urban community based on its profile/characteristics. The UESC template as per land use category and department wise applicability will look as per below.

Department	Section	Generic Fields	Specific & Configurable Fields for Different Land Use Types			Field Type	
			RWA	House	Comm. Bldg	Configured by	Updated by
UDD	Community Profile	UESC				UDD	System Generated
		Profile Info	<Area> <Num flats> <Amenities> ...			UDD	UDD (due to UESC application from urban community)
	Responsible Contact	Compliance Officer				UDD	UDD & Compliance Officer (Only Responses by Compliance officer)
		Community Representative					
	Transactions records[N]	Notice Date				UDD	UDD & Compliance Officer (Only Responses by Compliance officer)
		Subject					
		Content					
		Response(s)					
		Attachment(s)					
		Closure Status					
	Consolidated Annual Metrics[N]	Star Rating	<Yes/No>			UDD	System computed based on rules defined by UDD
		Metric1	<Yes/No>				
		Metric2 ...	<Yes/No> ...				
KSPCB	License Info	Lic No.				KSPCB	KSPCB
		Issue Date					
		Expiry Date					
		Status					

		Responsible Dept. Officer					
	Rules Info	Rule/Act #1	<Yes/No>			KSPCB	KSPCB
		Rules/Act #2	<Yes/No>				
	Transactions records[N]	Notice Date				KSPCB	KSPCB & Compliance Officer (Only Responses by Compliance Officer)
		Subject					
		Content					
		Response(s)					
		Attachment(s)					
		Closure Status					
	Monthly filing records[N]	Param1 Param2 ...	<Yes/No> <Yes/No> ...			KSPCB	Compliance Officer
		Annual Filing records[N]	Param1 Param2 ...				
	Annual Metrics[N]	Star Rating	<Yes/No>			KSPCB	System computed based on rules defined by dept
		Metric1	<Yes/No>				
		Metric2	<Yes/No>				
		...	...				
	Reminders[N]	Remind Rule1 Remind Rule2	<Yes/No> <Yes/No> ...			KSPCB	System generated based on remind rules defined by dept
BWSSB							
BBMP							
BESCOM							
...	...	...	...	...	...	...	...

Note that every department will have the flexibility to define the record template for their respective section and for the respective urban land use type category. The UESMS system will allow the departments to configure a customized record template for a urban community based on the master template above after considering the applicability of configurable fields in the master template.

Note: This is only an illustration, and the actual design will be a matter of further detailing of requirements, workflow, and software considerations.

Note: [N] stands for N number of records of given type

E. Configurability Requirements

The UESMS can be deployed as a configurable instantiation for each state. So, this software can be centrally developed and then instantiated across states to reduce the software development costs. Following are important considerations for UESMS software considering the regional and other configurability requirements.

- A login beyond state level (E.g. Ministry of Urban Affairs) can be provided for the central ministries to get a snapshot view of compliance status at state level. The login though may be for viewing purposed only.

- Local Language support must be provided for regional use. However, given the software may be used by central ministries also, the software may have to be designed with English language as base, but local language translations shall be available during deployment and use possibly by use of modern machine translation technologies.
- The system should be self-configurable and self-scalable without paperwork, i.e. right from instantiation to configuration to use, there should be no need of any paper process. The system should get setup and scaled up on its own through required online authorizations and registrations starting from UDD->Departments->Compliance Officers->Community to take the shape of full and usable UESMS system. Issues if any in configuration of the system should be self-rectifiable by the system users themselves without need for a dedicated team to take care of the same.

F. Enforcement workflows

It is imagined, that the UESMS system will be rolled out and urban communities will be onboarded and tracked/monitored for compliances as per the below work flows.

1. Preparation/Study

This will involve doing the background preparation to do the configurations of UESMS once it is installed on the servers. Note that this is not the actual configuration of UESMS, but the preparation works to identify the fields for the department, community, and compliance officer records. The following will need to be done as part of preparation.

- Identify the urban community types to be covered in the framework. E.g. RWA, independent houses, commercial buildings etc. Identify the urban departments that will participate in UESMS to track the identified urban community types for compliance to rules & regulations. Identify the qualification, training requirements, and certification criteria for compliance officers who would work for UESMS.
- Finalize the fields of the master templates for UESD, UESO and UESC.
 - The UESD and UESO master templates would be mostly same across all departments and possibly can be adopted as common across all departments.
 - The UESC master template has to be researched and adopted separately by each department as per the requirements for tracking of each department

2. Infrastructure bringup

This will involve hosting the UESMS on the UDD server and let the software be 1st time configured for roll out and urban community onboarding.

By UDD:

- a. Enter the Urban community types identified (RWA, independent houses, commercial buildings etc)
- b. Register the master templates for UESD and UESO in the system.
- c. Create the 1st set of departmental records (UESD) and compliance officer's records (UESO)

By departments:

- d. Register the department specific master templates for each urban community type (UESC master template).

Note: Adding/modifying templates (community types, department templates, compliance officer templates, community templates), departments and compliance officers will be an ongoing background activity even after roll out.

3. Rollout and Urban community onboarding

The system is ready for roll out and urban community onboarding after the 1st set of departments and compliance officers are registered, and department wise master templates are ready and configured in the system for identified urban community types. The Urban community onboarding would involve the following.

- a. The Urban community will apply online on the UESMS system for the UDD to allot a UESC number. The urban community will upload the required details and documents to create its UESC profile.
- b. The UDD back office will scrutinize the application and allow the system to create the UESC number and relevant UDD specific section of the UESC record along with provision for the urban community to login. The compliance officer will be system allotted and will be notified about the new UESC record created in the system.
- c. The compliance officer will get into standard contract and fees (standardized by UDD) with the urban community and will thereafter work on behalf of the urban community in the UESMS system.
- d. The compliance officer will collect the relevant documents from the urban community and apply to the relevant departments based on the urban community type and department applicability matrix. The UESC number will be quoted in the department applications.
- e. The relevant departments will scrutinize the documents and configure department specific section for UESC number based on the master template for the urban community type. The configurable fields of master template will be enabled/disabled based on the profile of the urban community as mentioned in the application submitted.

When all relevant departments create department specific sections for the UESC number, then the urban community onboarding procedure can be considered as complete.

4. Monthly and Annual Filing

Once the urban community is onboarded with UESC number and all relevant departments specific sections created in the records, the compliance officer will submit the monthly and annual returns for the urban community. The urban community will get a read only view of the UESC record and the returns submitted.

5. Notices and Responses

Notices from departments will be either generated in the UESMS system based on the rules configured by the departments in the UESC record or will be manually entered by the department officer. The notices will be sent by the system to the compliance officer and copied to the community representative. The Compliance officer will work with the urban community to respond appropriately (with documents etc.) to the notices and ensure the notices are brought to closure.

6. Reminders for pending action.

The system will auto note events and pending actions for the UESC number like license expiry, open notices etc. and send periodic reminders to compliance officer copying the urban community representative. No intervention from department officer will be required for reminders.

7. Star Rating & Metrics

The star rating and other metrics will be generated by the system based on the monthly and annual filings and the rules configured by the departments to compute the metrics. The system will also generate dashboard data/maps for area, town/city, state level compliance based on metrics configured by the UDD department.

8. Whistle blower handling.

The system will allow whistle blowers to report suspected violations. The same will be assigned in the background by the system to the appropriate department officers for closure. The identity of the whistle blower though noted in the system will not be revealed to any of the investigating officers including compliance officers involved in the investigation and vice versa. Any further inputs sought by the officers will be transacted and recorded in the system, but identities of involved parties in the investigations will not be disclosed to any party, except when required in case of a legal intervention authorized by courts. In such cases of legal intervention, the identities extracted will be recorded as a special transaction record in the system along with trace of the department authority who extracted the identity information.

V. Summary

This paper is an attempt to identify the reasons for low compliance in urban areas to rules and regulations defined by urban departments. The reasons are identified based on case study and

observations in Resident Welfare Associations (RWA's). The paper also proposes a possible solution, not necessarily for RWA's but for all urban communities. The proposed solution if implemented will ensure that urban communities are better informed and there is better tracking and monitoring of compliances to rules & regulations defined by the urban departments. The proposal primarily relies on creating a pool of urban compliance experts called "Compliance Officers" who will work on behalf of the urban communities in a new complementary digital framework called "Unified Urban Environment and Safety Monitoring/Tracking System (UESMS)" hosted by the state UDD departments. The proposed digital framework will also provide metrics like star ratings for urban communities and dashboard data/maps for compliance metrics at area, town, city, district, state and national levels.

VI. References

No references have been made in writing this paper. This is deliberate to keep the viewpoints as coming from non-experts, neither policy makers nor department experts. This paper is written based on personal understanding of the situation in RWA's and extrapolating the same to understand the problem in general and propose a solution.